IN THE HIGH COURT OF JUSTICE

BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES

COMMERCIAL COURT (KBD)

Claim No. CL-2026-000118

B E T W E E N:

HARTWELL PHARMA LIMITED

Claimant

- and -

TESSARACT BIOREAGENTS LIMITED

Defendant

DEFENCE

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1. Save where expressly admitted, the Defendant denies each allegation in the Particulars of Claim as if set out and traversed seriatim. References to paragraphs are to paragraphs of the Particulars of Claim.

2. Paragraphs 1 and 2 are admitted.

3. Paragraphs 3 and 4 are admitted, save that the Defendant avers that the Agreement is to be construed as a whole and that the obligations in clause 4 are to be read subject to the limitation of liability in clause 14.

4. As to paragraph 5, it is admitted that the implied terms pleaded were terms of the Agreement, but it is denied that they were breached for the reasons given below.

5. Paragraphs 6 and 7 are admitted. The Defendant avers that batch TX-HX218-0461 was accompanied by a Certificate of Analysis demonstrating compliance with each parameter then tested under the agreed release methods.

6. As to paragraph 8, it is admitted that the Claimant reported an impurity at 0.9% area on 2 September 2025. It is not admitted that the impurity originated solely in the Batch as opposed to the Claimant's own manufacturing or handling, which is a matter for the Claimant to prove. The Claimant is put to proof that its release methods, equipment and process were validated and free from contribution to the impurity.

7. As to paragraph 9, it is admitted that the Defendant sourced the 4-chloro intermediate for the Batch from Reyland Fine Chemicals. It is admitted that no formal change-control notification was submitted. It is averred that the substitution was made in good faith in response to a supply shortage affecting the qualified supplier; that the incoming intermediate met the Defendant's agreed incoming specification; and that the Defendant did not appreciate that the substitution required change control for a starting material of that kind.

8. Paragraph 10 is denied. The Batch conformed to the Schedule 3 specification on each parameter tested under the agreed methods, and the Certificate of Analysis was accurate as to those parameters.

9. Paragraph 11 is denied. Further or alternatively, any breach was not deliberate within the meaning of clause 14.4, being an operational sourcing decision and not a knowing or reckless contravention of the change-control obligation.

10. As to paragraphs 12 to 14, causation, remoteness and quantum are all in issue. The Defendant denies that the clinical-delay and site-standby costs are recoverable, such losses being too remote and/or losses that the Claimant failed to mitigate. The Claimant is put to strict proof of each item in the Schedule of Loss.

11. As to paragraphs 15 and 16, the Defendant avers that its aggregate liability (if any, which is denied) is limited to £250,000 by clause 14. Clause 14.4 is not engaged for the reasons given at paragraph 9 above.

12. Save as expressly admitted, the Defendant denies that the Claimant is entitled to the relief claimed or to any relief.

ROBERT MASON

Statement of Truth

The Defendant believes that the facts stated in this Defence are true. I am duly authorised by the Defendant to sign this statement.

Signed: ..... Dated: 13 March 2026 — Thackeray Wolfe LLP, solicitors for the Defendant.